

STRICTLY CONFIDENTIAL
WORKING DRAFT DOCUMENT

DECEMBER 19, 2023

BY AND BETWEEN

MITO ULTIMATE HOLDINGS

The Seller

AND

AGAPE PARTICIPACOES LTDA.

The Purchaser

IN THE PRESENCE OF:

ALFAMITO

The Company

SALE AND PURCHASE AGREEMENT

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SALE AND PURCHASE AGREEMENT

This sale and purchase agreement is entered into on December 19, 2023.

BETWEEN THE UNDERSIGNED:

1. **MITO ULTIMATE HOLDINGS**, a Luxembourg private limited liability company (*société à responsabilité limitée*) incorporated under the laws of Luxembourg, having its registered office at 2A, rue Nicolas Bové, L-1253 Luxembourg, Grand Duchy of Luxembourg, registered with the Register of Commerce and Companies of Luxembourg under number B 203.795, and represented by Shahram Haghighi (as Class A Manager) and Benjamin Chouraki (as Class B Manager), duly empowered for the purposes hereof (hereinafter the “**Seller**”);

AND:

2. **AGAPE PARTICIPACOES LTDA.**, a Brazilian one-partner limited liability company, having its registered office at Rua Alcides Lourenço da Rocha, 167, Conj. 91, ZIP: 04571-910, São Paulo, SP, Brazil, registered with the JUCESP – Junta Comercial do Estado de São Paulo under number 35236046411 and represented by Vincent Robert Emile Baron, duly empowered for the purposes hereof (hereinafter the “**Purchaser**”);

The Purchaser and the Seller are hereinafter referred to as the “**Parties**” and individually as a “**Party**”.

IN THE PRESENCE OF:

3. **ALFAMITO**, a Luxembourg private limited liability company (*société à responsabilité limitée*) incorporated under the laws of Luxembourg, having its registered office at 2A, rue Nicolas Bové, L-1253 Luxembourg, Grand Duchy of Luxembourg, registered with the Register of Commerce and Companies of Luxembourg under number B 203.873, represented by Shahram Haghighi (as Class A Manager) and Benjamin Chouraki (as Class B Manager), duly empowered for the purposes hereof (hereinafter the “**Company**”).

WHEREAS

- A. The Company holds all the shares of Alfatherm S.p.A., an Italian joint-stock company (*società per azioni*), having its registered office at Via Ambrogio Colombo, 275, 21055, Gorla Minore (VA), Italy and registered at Varese REA n. 294868 (hereafter “**Alfatherm**”).
- B. The Seller holds all the twelve thousand five hundred (12,500) shares of the Company, having a nominal value of one euro (EUR 1.-) each (the “**Purchased Shares**”), which are subject to certain encumbrances under Alfatherm’s Debt Restructuring Agreement pursuant to Article 182 bis of the Italian Bankruptcy Law approved on 12 February 2021 and of the following Agreement pursuant to Article 23, co 1, Letter c) CCII, of D.L. 118/2021 duly signed with the Financial Creditor on 26 April 2023.
- C. The Purchaser wishes to acquire the Purchased Shares from the Seller and the Seller wishes to sell the Purchased Shares to the Purchaser.
- D. The Parties have therefore decided to enter into this Agreement which sets out the terms and conditions pursuant to which the Seller sells to the Purchaser, and the Purchaser acquires from the Seller, all (and not less than all) the Purchased Shares.

IT IS HEREBY AGREED AS FOLLOWS:

1. DEFINITIONS, INTERPRETATION

1.1 Definitions

In this Agreement (including its Recitals and Schedules), the following words and expressions

have the meanings ascribed to them below:

"Affiliate" means, with respect to any Entity, from time to time, any individual or Entity directly or indirectly controlling such Entity and any Entity directly or indirectly controlled by, or under common control with, such Entity; it being specified that (i) any investment fund shall be deemed to be an Affiliate of its general partner, (ii) no investment fund shall be deemed to be an Affiliate of any of its limited partners, (iii) any portfolio company of any investment fund (to the extent it has an operational activity and is not a holding entity) shall not be deemed to be an Affiliate of that investment fund nor an Affiliate of any other portfolio company of that investment fund.

"Agreed Completion Date" means December 19, 2023.

"Agreement" means this sale and purchase agreement.

"Bankruptcy Proceedings" means bankruptcy (*faillite*), insolvency, moratorium, controlled management (*gestion contrôlée*), suspension of payments (*sursis de paiement*), court ordered liquidation or reorganisation, or any similar procedure affecting the rights of creditors generally.

"Business Day" means any day (except any Saturday, Sunday or a public holiday) on which banks in Luxembourg-city and Milan (Italy) are open for business.

"Completion" means the completion of the sale by the Seller to the Purchaser and of the purchase by the Purchaser from the Seller, of all (and not less than all) the Purchased Shares, in accordance with the terms and conditions of this Agreement as referred to in Clause 5.1.

"Completion Date" means the date on which the Completion takes place in accordance with Clause 5.1.

"Condition Precedent" has the meaning set out in Clause 4(a).

"Entity" means and includes any form of legal entity, company, corporation, general partnership, limited liability partnership, joint venture, trust, economic interest group, firm or other enterprise incorporated or not, organization, or any other form of legal association including any type of fund.

"Law" means any applicable statute, law, ordinance, rule, regulation, order, judgment, injunction, permit, licence, approval or decree enacted, adopted, issued or promulgated by any governmental authority.

"Luxembourg Company Law" means the Luxembourg law on commercial companies dated August 10, 1915, as amended and coordinated.

"Ordinary Course of Business" means, with respect to Company and Alfatherm, any action that is similar in nature and magnitude to actions customarily and typically taken in the ordinary course of the normal day-to-day operations of the Company and Alfatherm and which is consistent with the management practices of the Company and Alfatherm during the two (2) years preceding the date of this Agreement.

"Organizational Documents" mean when used in respect of (i) any company (*société*) or other incorporated Entity, the memorandum and articles of association (*statuts*), charter or similar constitutive document of such company or other incorporated Entity, as filed with the relevant commercial registry, company registrar, as the same may be amended, supplemented or otherwise modified from time to time, and (ii) any partnership or other unincorporated Entity, its certificate of formation, partnership agreement, governing agreement (*contrat constitutif*) and/or similar constitutive document, as the same may be amended, supplemented or otherwise modified from time to time.

"Parties" and **"Party"** have the meaning set out in the Parties' Recital.

"Purchase Price" has the meaning set out in Clause 3.1.

"Purchased Shares" means the twelve thousand five hundred (12,500) shares of the Company, having a nominal value of one euro (EUR 1.-) each, sold by the Seller to the Purchaser on the Completion Date, in accordance with the terms and conditions of this Agreement.

"Purchaser" has the meaning set out in the Parties' Recital.

"Purchaser's Completion Obligations" has the meaning set out in Clause 5.3.

"Resigning Officers" has the meaning set out in Clause 6.2(a)(i).

"Seller" has the meaning set out in the Parties' Recital.

"Seller's Completion Obligations" has the meaning set out in Clause 5.2.

"Transaction" means the contemplated transfer of the full ownership of and title to all (and not less than all) the Purchased Shares to the Purchaser, under the terms and subject to the provisions of this Agreement.

1.2 Interpretation

In this Agreement, unless otherwise expressly stated:

- (a) references to this Agreement or any other document include this Agreement or such other document as varied, amended or supplemented in any manner;
- (b) references to the Recitals, Clauses, Exhibits and Schedules and sub-divisions of them are references to the Recitals and Clauses of, and the Exhibits and Schedules to, this Agreement and sub-divisions of them respectively, and the Recitals of and the Exhibits and Schedules to this Agreement form part of this Agreement;
- (c) references to the singular include the plural and vice versa;
- (d) references to one gender shall be construed where applicable to include both genders;
- (e) headings are inserted for convenience only and shall be ignored in construing this Agreement;
- (f) all references to a particular time of day are references to Luxembourg time;
- (g) when used in this Agreement the term "or" is not exclusive and the term "including" and its variants mean "including, without limitation" and its variants;
- (h) when used in this Agreement the terms "hereof," "herein," "hereby," "hereto," "hereinafter" and derivatives or similar words refer to this entire Agreement, including the Recitals of and the Exhibits and Schedules to this Agreement;
- (i) any reference to "days" means calendar days unless Business Days are expressly specified. If any action under this Agreement is required to be done or taken on a day that is not a Business Day, then such action shall not be required to be done or taken on such day but on the first succeeding Business Day thereafter; and
- (j) any reference to "*best efforts*" or "*reasonable efforts*" of a Party in respect of a given action shall mean that such Party has an "*obligation de moyens*" in connection therewith.

2. SALE AND PURCHASE

2.1 Sale and purchase of the Purchased Shares

On the terms and subject to the conditions set out in this Agreement, including in particular the satisfaction of the Condition Precedent, the Seller hereby sells to the Purchaser all (and not less than all) the Purchased Shares and the Purchaser hereby purchases all (and not less than all) the Purchased Shares, together with all rights attached to the Purchased Shares, from the Seller on the Completion Date. It being understood and agreed amongst the Parties that the Purchased Shares shall continue to be subject to certain encumbrances under Alfatherm's Debt Restructuring Agreement pursuant to Article 182 bis of the Italian Bankruptcy Law approved on 12 February 2021 and of the following Agreement pursuant to Article 23, co 1, Letter c) CCII, of D.L. 118/2021 duly signed with the Financial Creditor on 26 April 2023.

2.2 Transfer of the full ownership of and title to all the Purchased Shares

- (a) The Parties hereby agree that transfer of full ownership of and title to the Purchased Shares shall occur on the Completion Date.
- (b) The Seller hereby mandates the Company to (i) register, as of the Completion Date, the transfer of ownership of and title to the Purchased Shares to the Purchaser in the shareholders' register and (ii) file a notice, on Completion Date or as soon as possible thereafter, of the transfer of the Purchased Shares with the Register of Commerce and Companies of Luxembourg as provided in article 100-13 of the Luxembourg Company Law, which the Company agrees to do in accordance with article 710-13 of the Luxembourg Company Law.

3. PURCHASE PRICE AND PAYMENT

3.1 Purchase Price

The aggregate purchase price for the Purchased Shares sold by the Seller to the Purchaser (the "**Purchase Price**") shall be equal to One Euro (€1).

3.2 Payment of the Purchase Price

Subject to the satisfaction of the Condition Precedent, the Purchaser shall, on the Completion Date, pay the Purchase Price by effecting wire transfer for the amount of the Purchase Price (value date: the Completion Date) in immediately available funds to the Seller's bank account as notified in advance of the Completion Date.

4. CONDITION PRECEDENT TO THE SALE AND PURCHASE OF THE PURCHASED SHARES

- (a) The Purchaser's obligation to purchase the Purchased Shares and to consummate the transactions contemplated in this Agreement on the Completion Date and the Seller's obligation to sell the Purchased Shares and to consummate the transactions contemplated in this Agreement on the Completion Date shall be subject to the receipt, on or before December 22 (the "**Long Stop Date**"), of all necessary approvals under the proceeding of Alfatherm in accordance with Alfatherm's Debt Restructuring Agreement pursuant to Article 182 bis of the Italian Bankruptcy Law approved on 12 February 2021 and of the following Agreement pursuant to Article 23, co 1, Letter c) CCII, of D.L. 118/2021 duly signed with the Financial Creditor on 26 April 2023 (the "**Condition Precedent**" - "*condition suspensive*").
- (b) The Seller shall promptly give notice to the Purchaser of the satisfaction of the Condition Precedent and, at the latest, within two (2) Business Days of becoming aware of the same.
- (c) If the Condition Precedent is not satisfied prior or on the Long Stop Date, then each Party shall have the right, in its sole discretion and as its sole and exclusive remedy, to terminate this Agreement by providing written notice to the other Party, and the Parties shall have no further rights or obligations under this Agreement, except those which have accrued prior to, and/or expressly survive, such termination.

5. COMPLETION

5.1 Date and place

The transfer of the full ownership of and title to the Purchased Shares from the Seller to the Purchaser (the “**Completion**”) shall take place (i) at the Agreed Completion Date subject to the Condition Precedent having been satisfied, (ii) if the timing of the satisfaction of the Condition Precedent allows it, such earlier date as may be agreed in writing between the Seller and the Purchaser, or (iii) on such other date or at such other place, as may be agreed in writing between the Purchaser and the Seller (any of (i), (ii) or (iii) being the “**Completion Date**”).

5.2 Seller’s Completion Obligations

On the Completion Date, the Seller shall deliver to the Purchaser or cause to be delivered to the Purchaser (the “**Seller’s Completion Obligations**”):

- (a) a duly executed short-form share purchase agreement providing for the transfer of the full ownership of and title to Purchased Shares from the Seller to the Purchaser;
- (b) the updated shareholders’ register of the Company recording the transfer of the Purchased Shares to the Purchaser;
- (c) unconditional resignation letters effective as of the Completion Date in the form set out in **Schedule 1** duly executed by each director, manager and/or representative and/or officer of the Company;
- (d) a certified copy of resolutions of the Company whereby the Seller grants provisional discharge (*quitus*) up to Completion Date to the Company’s managers appointed by the Seller who would have resigned or handed in their resignation on or prior to Completion Date, including where the actual resignation only becomes effective after the Completion Date, except for cases of fraud, gross negligence, willful misconduct or criminal offence; and
- (e) a non-bankruptcy certificate of the Company, issued by Register of Commerce and Companies of Luxembourg on the day prior to the Completion Date.

5.3 Purchaser’s Completion Obligations

On the Completion Date, the Purchaser shall (the “**Purchaser’s Completion Obligations**”):

- (a) pay the Purchase Price in accordance with Clause 3.2;
- (b) deliver to the Seller a receipt of delivery of the register of the Company; and
- (c) undertake to vote at the next Company’s annual general meeting relating to the financial year(s) ending on 31 December 2023 in favour of a resolution to grant full discharge (*quitus*) up to Completion Date to the Company’s managers appointed by the Seller who would have resigned or handed in their resignation on or prior to Completion Date, including where the actual resignation only becomes effective after the Completion Date, except for cases of fraud, gross negligence, willful misconduct or criminal offence.

5.4 Effectiveness of the Completion obligations

The effectiveness of each of the Seller’s Completion Obligations is conditional upon the

fulfilment of the Purchaser's Completion Obligations and *vice versa*. All matters to take place at the Completion under this Agreement will be considered to take place simultaneously, and no delivery of any document required to be completed at or in connection with the Completion will be deemed complete, until all transactions and deliveries of documents required by this Agreement to be completed at or in connection with the Completion are completed.

5.5 Right to terminate

- (a) If (i) the provisions of Clause 5.2 are not complied with by the Seller and (ii) the Condition Precedent is satisfied, the Purchaser shall, at its own discretion, by written notice to the Seller, either postpone the Completion by ten (10) Business Days or effect the Completion to the extent reasonably practicable, notwithstanding such non-compliance. If (i) the provisions of Clause 5.2 are still not fully complied with by the Seller at such new Completion date fixed by the Purchaser and (ii) the Condition Precedent is satisfied, the Purchaser shall be entitled, by written notice to the Seller, to elect to terminate this Agreement or to effect the Completion to the extent reasonably practicable, notwithstanding such non-compliance (in addition to and without prejudice to the right to claim for damages or to seek specific performance in accordance with the terms of this Agreement) and the Parties shall take all necessary steps to unwind any already completed Seller's Completion Obligations or Purchaser's Completion Obligations, as the case may be.
- (b) If (i) the provisions of Clause 5.3 are not complied with by the Purchaser and (ii) the Condition Precedent is satisfied, the Seller shall, at its own discretion, by written notice to the Purchaser, either postpone the Completion by ten (10) Business Days or effect the Completion to the extent reasonably practicable, notwithstanding such non-compliance. If (i) the provisions of Clause 5.3 are still not fully complied with by the Purchaser at such new Completion date fixed by the Seller and (ii) the Condition Precedent is satisfied, the Seller shall be entitled, by written notice to the Purchaser, to elect to terminate this Agreement or to effect the Completion to the extent reasonably practicable, notwithstanding such non-compliance (in addition to and without prejudice to the right to claim for damages or to seek specific performance in accordance with the terms of this Agreement) and the Parties shall take all necessary steps to unwind any already completed Seller's Completion Obligations or Purchaser's Completion Obligations, as the case may be.
- (c) For the avoidance of doubt, in the event that both Clause 5.5(a) and Clause 5.5(b) simultaneously apply, the Seller and the Purchaser agree that where either the Purchaser or the Seller are entitled and wish(es) (a) to postpone the Completion or (b) to effect the Completion notwithstanding a non-compliance of the other Party, and either the Seller or the Purchaser, as the case may be, is entitled to and wishes to terminate this Agreement, this Agreement shall terminate and the Parties shall take all necessary steps to unwind any already completed Seller's Completion Obligations or Purchaser's Completion Obligations, as the case may be.
- (d) It is expressly acknowledged by the Purchaser and the Seller, that, save for their right to terminate this Agreement provided for in this Clause 5.5 and except for termination of the Agreement pursuant to the provisions of Clause 9.9, the Purchaser and the Seller shall not be entitled to terminate this Agreement.
- (e) In case of termination of this Agreement pursuant to this Clause 5.5, the Parties shall take all necessary steps to unwind any already completed Seller's Completion Obligations or Purchaser's Completion Obligations, as the case may be.

6. COVENANTS

6.1 Covenants of the Purchaser and of the Seller

The Purchaser and the Seller covenant and agree to act in good faith and to make their best efforts to facilitate the consummation of the transactions contemplated in this Agreement.

In particular, the Purchaser and the Seller shall collaborate fully with each other for the purposes of the transactions contemplated in this Agreement.

6.2 Covenants of the Purchaser

(a) Former officers

The Purchaser:

- (i) shall procure that the directors, managers, the members of the board of directors, board of managers, supervisory board or management board and more generally officers or legal representatives of the Company and Alfatherm, resigning on the Completion Date (the “**Resigning Officers**”) shall be discharged from any liability in such capacity; and
- (ii) without prejudice to the rights of the Purchaser in Clause 7 below, shall procure that none of its Affiliates (including, following the Completion, the Company and Alfatherm), shall make, any claim and/or action (i) against any of the Resigning Officers, in connection with their capacities as such or (ii) against the Seller in connection with such Seller’s capacity as a direct or indirect shareholder of the Company and Alfatherm, in each case with respect to the period until the Completion and in each case except with respect to liabilities arising from (i) criminal actions for which such persons are liable, (ii) gross negligence or willful misconduct or (iii) claims made by persons other than the Purchaser, its Affiliates or any of the Company and Alfatherm to the extent such claims are not caused by the actions or decisions of the Purchaser, its Affiliates or any of the Company and Alfatherm.

(b) Corporate Formalities

- (i) The Purchaser shall procure that shareholders’ resolutions of the Company and Alfatherm are held as of Completion Date at which it is resolved to (i) acknowledge the resignation of directors, managers and/or representatives and/or officers of the Company and Alfatherm as set forth in Clause 5.2(c), (ii) appoint new directors, managers and/or representatives and/or officers of the Company and Alfatherm and (iii) change the address of the registered office of the Company.
- (ii) The Purchaser shall procure that the publication formalities relating to the resignations of the Company and Alfatherm having occurred on Completion Date be carried out promptly.

(c) Access

The Purchaser shall grant, and shall procure that the Company and Alfatherm grant, to the Seller and to such persons resigning on the Completion Date, reasonable access during normal office hours to the representatives and to the books and records of the Company and Alfatherm, for the purpose of resisting or defending any such claim or make any counterclaim, provided that such access shall be at reasonable times and shall not unreasonably disrupt the personnel and operations of the Company and Alfatherm concerned.

6.3 Covenants of the Seller

(a) Management until the Completion Date

During the period from the date of this Agreement to Completion Date, the Seller covenants, within the limit of its power, to procure that the Company and Alfatherm operate their business in the Ordinary Course of Business.

(b) Access

During the period from the date of this Agreement to Completion Date, the Seller shall, and/or shall cause the Company and Alfatherm, to, permit a limited number of the representatives of the Purchaser (subject to entering into appropriate confidentiality agreements) to have access to the Company and Alfatherm and their respective officers, offices, books and records, during regular business hours and upon reasonable advance written notice. The Purchaser acknowledges and agrees that this right of access does not allow it or any of its employees, representatives or officers to start or continue conducting any further investigation or due diligence in relation with the Company and Alfatherm after the date hereof.

7. REPRESENTATIONS OF THE SELLER**7.1 General**

- (a) The Seller makes no representations to the Purchaser other than those specifically set out in Clause 7.2.
- (b) The representations made by the Seller in Clause 7.2 are made at the date hereof and as at the Completion Date, except if expressly made as of a specific date, in which case as of such specific date.
- (c) The Seller undertakes to hold the Purchaser and/or the Company (at the Purchaser's discretion) harmless and indemnified from and against of any and all liability, loss, damage, claim, expense, cost, fine, fee, penalty including those resulting from any and all actions, suits, proceedings, demands, assessments or judgments, together with reasonable costs and expenses (including the attorneys' fees and other legal costs and expenses relating thereto), suffered or incurred by the Seller and/or the Company arising or resulting from the untruthfulness or incorrectness of any of the Sellers representations and warranties set out in Clause 7.2.
- (d) The liability of the Seller in respect of any claim made by the Purchaser for a breach of the representations set out in Clause 7.2, shall in no event be greater than, and shall be limited to the Purchase Price received by the Seller in accordance with Clause 3.1 above; such limit shall not apply in case of fraud, gross negligence, willful misconduct or criminal offence by the Seller. Any indemnification paid by the Seller to the Purchaser for a breach of the representations set out in Clause 7.2 shall be deemed to constitute an adjustment of the Purchase Price.

7.2 General Representations by the Seller

The Seller represents and warrants to the Purchaser as follows:

7.2.1 Organisation, authority and validity

- (a) The Seller (i) is an Entity duly organised and validly existing under the Laws of the jurisdiction in which it is incorporated or operates, (ii) it has not ceased making, or is not unable to make, payments when they fall due (*en état de cessation des paiements*) and is not subject to any Bankruptcy Proceedings and (iii) it has the corporate power and authority to enter into this Agreement and to carry out its obligations hereunder.
- (b) The execution of this Agreement and the completion of the transactions contemplated herein have been duly authorised by its competent corporate bodies, and that no other corporate action on its part is necessary to authorise the execution of this Agreement or the completion of any of the transactions contemplated herein.
- (c) This Agreement has been duly executed and constitutes a legal, valid and binding obligation of the Seller enforceable in accordance with its terms.

7.2.2 No conflict

The Seller represents that neither the performance of its obligations hereunder nor the completion of the transactions contemplated herein:

- (a) conflicts with or breaches any provisions of the by-laws or other organizational or corporate documents of the Seller (where applicable);
- (b) conflicts with or breaches the marital property regime or nuptial agreement of the Seller (where applicable);
- (c) breaches, conflicts with, or results in the breach of, any material contract or undertaking to which the Seller is a party; or
- (d) constitutes a breach by the Seller of any Law applicable to it.

7.2.3 Ownership of the Purchased Shares

The Seller represents that:

- (i) it has alone the full ownership and good and valid title of the Purchased Shares;
- (ii) the Purchased Shares exist and have been duly authorized and validly issued by the Company in accordance with applicable Laws and are fully paid up;
- (iii) the Purchased Shares represent, directly and indirectly 100% of the share capital and 100% of the voting rights of the Company on a fully diluted basis; and
- (iv) the Company has alone the full ownership and good and valid title of the shares of Alfatherm.

8. REPRESENTATIONS OF THE PURCHASER

8.1 General

- (a) The Purchaser makes for the benefit of the Seller the representations set out in Clause 8.2 to Clause 8.3.
- (b) The representations made by the Purchaser in Clause 8.2 and Clause 8.3 are made as at the date hereof and as at the Completion Date, except if expressly made as of a specific date, in which case as of such specific date.

8.2 Organisation, authority and validity

- (a) The Purchaser is a corporation duly organised and validly existing under the Laws of Brazil. The Purchaser (i) has corporate power and authority to enter into this Agreement and carry out its obligations hereunder, in accordance with the terms of this Agreement and (ii) is not in a state of insolvency (*en état de cessation des paiements*), nor subject to any Bankruptcy Proceedings.
- (b) The execution of this Agreement, and the completion of the transactions contemplated herein have been duly authorised by the competent corporate bodies of the Purchaser, and no other corporate action on the part of the Purchaser is necessary to authorise the execution of this Agreement or the completion of any of the transactions contemplated herein.
- (c) This Agreement has been duly executed by the Purchaser and constitutes a legal, valid and binding obligation of the Purchaser enforceable in accordance with its terms.

8.3 No conflict

Neither the performance by the Purchaser of its obligations hereunder nor the completion of the transactions contemplated herein:

- (a) conflicts with or breaches any provisions of the bylaws or other organizational or corporate documents of the Purchaser;
- (b) breaches, conflicts with or results in the breach of any material contract or undertaking to which the Purchaser is a party; or
- (c) constitutes a breach by the Purchaser of any Law applicable to it.

9. OTHER PROVISIONS

9.1 Cooperation

- (a) The Parties agree and undertake to furnish to each other such further information, to execute such other documents, and to do such other things (before or after the Completion Date), as any other Party may reasonably request for the purposes of carrying out the transactions set out in this Agreement.
- (b) The Seller undertakes to use commercially reasonable efforts, to the extent necessary, to assist the Purchaser with the tax filings of the Company with respect to the 2023 financial exercise.

9.2 Confidentiality and public announcement

(a) Confidentiality

The Parties shall treat as confidential and not disclose the provisions of this Agreement and any agreement entered into pursuant to this Agreement save where otherwise expressly permitted by another written agreement entered into between the Parties. Notwithstanding the foregoing, any of the Parties may disclose or use the confidential information referred to in this Clause 9.2(a) to the extent that:

- (i) the disclosure or use is required by Law, the rules and regulations of any recognized stock exchange or otherwise in connection with any judicial or administrative proceeding (including, in response to oral questions, interrogatories or requests for information or documents);
- (ii) the disclosure or use is required to vest the full benefit of this Agreement in the Seller or the Purchaser, as the case may be, or in connection with the application for licenses, permits, registrations;
- (iii) the disclosure is made to shareholders, limited partners, employees, directors, officers or professional advisers of the Seller or the Purchaser on a "need to know" basis; or
- (iv) the information becomes publicly available (other than by breach of this Agreement).

Provided that prior to disclosure or use of any information pursuant to (i) or (ii) above (except in the case of disclosure to a tax authority), the Parties concerned shall promptly notify the other Parties of such requirement with a view to providing the other Parties with the opportunity to contest such disclosure or use or otherwise to agree the timing and content of such disclosure or use.

It is expressly agreed that should this Agreement be voided or terminated, this

Clause 9.2(a) shall remain in force for a period of three (3) years as from the date of this Agreement.

(b) **Public Disclosure**

Notwithstanding Clause 9.2(a), the Seller and the Purchaser will cooperate to prepare and agree on a joint press release to be made on or about the date of this Agreement with respect to the transactions contemplated by this Agreement. No other press release, notice or disclosure to any Entity or individual or other communication concerning the transactions contemplated by this Agreement, whether prior to or subsequent to the Completion Date, shall be issued, given, made or otherwise disseminated by any Party, officers, directors, employees or representatives without the prior written approval of the Seller and the Purchaser (such approval not to be unreasonably withheld or delayed).

9.3 Costs

- (a) Each Party shall pay its own costs and expenses (including fees and expenses of their own advisers) in relation to the negotiation, preparation and implementation of this Agreement.
- (b) Any registration tax or stamp duties due in connection with the transfer of the Purchased Shares shall be borne by the Purchaser.

9.4 Notices

(a) **Election of residence**

Each notice, request or other communication given or made under or in connection with this Agreement shall be validly given or made if made in writing, signed by the party giving notice and sent for the attention of the addressee by (i) hand delivery against receipt signed by the addressee or (ii) international courier service providing monitoring of the sending and receipt of the mail (such as Fedex or DHL) or (iii) email with a confirmation copy sent on the same day by international courier service providing monitoring of the sending and receipt of the mail (such as Fedex or DHL).

- (b) A Notice to the Seller shall be sent to the following address, or such other person or address as the Seller may notify to the Purchaser from time to time:

Mito Ultimate Holdings

2A, rue Nicolas Bové
L-1253 Luxembourg, Grand Duchy of Luxembourg
Attention: Benjamin Chouraki & Shahram Haghighi
Email: Benjamin.Chouraki@yfp.lu; shaghighi@opengatecapital.com

- (c) A Notice to the Purchaser shall be sent to the following address, or such other person or address as the Purchaser may notify to the Seller from time to time:

Agape Participacoes Ltda.

Rua Alcides Lourenço da Rocha, 167, Conj. 91, ZIP: 04571-910, São Paulo, SP, Brazil
Attention: Vincent Baron & Cesar Zarza
Email: Vincent.baron@naxentia.com.br ; cesar.zarza@naxentia.com.br

- (d) A Notice shall be effective upon receipt and shall be deemed to have been received at the time of delivery.

9.5 Entire Agreement

This Agreement (together with any agreement or document referred to herein or signed pursuant to this Agreement) contains the entire agreement of the Seller and the Purchaser and cancels and replaces all prior agreements, understandings or arrangements (both oral and written) relating to the subject matter of this Agreement (and any such agreement or document) between any of the Seller and the Purchaser.

9.6 Severability

If all or part of any provision of this Agreement (or of any agreement or document signed pursuant to this Agreement) is held to be invalid, inapplicable, illegal or unenforceable in any competent jurisdiction, the other provisions of this Agreement (or such agreement or document) shall remain valid, applicable and enforceable, subject to any contrary provision in this jurisdiction. The Parties, nevertheless, agree that in such circumstances, they shall negotiate replacement provisions in good faith that are (i) valid, applicable and enforceable and (ii) in conformity with the original intentions of the Parties.

9.7 Absence of Third-Party Rights – Assignment – Substitution

- (a) This Agreement and all the rights and powers granted hereby shall bind and inure to the benefit of the Parties and their respective permitted successors and assigns and shall not benefit or create any rights whatsoever in favor of any Entity or individual other than the Parties and, their respective permitted successors and assigns. This Agreement and the rights, interests and obligations hereunder may not be assigned by any Party without the prior written consent of the other Parties.
- (b) Any attempted assignment in violation of this Clause 9.7 shall be null and void.

9.8 Waivers and amendments

No modification of, or amendment to, this Agreement shall be valid unless set forth in an instrument in writing signed by the Seller and the Purchaser. Any waiver of any term or condition of this Agreement must be set forth in an instrument in writing signed by the waiving Party and must refer specifically to the term or condition to be waived and to the circumstances of such waiver. No such waiver shall be deemed to constitute a waiver applicable either to other circumstances involving the same term or condition or to any other term or condition of this Agreement. Except as otherwise expressly provided herein, no failure on the part of any Party to exercise, and no delay in exercising, any right, power or remedy hereunder, or otherwise available in respect hereof at law or in equity, and no custom or practice of the Parties at variance with the terms hereof, shall operate as a waiver thereof, nor shall any single or partial exercise of such right, power or remedy by such Party preclude any other or further exercise thereof or the exercise of any other right, power or remedy.

9.9 Termination

(a) Termination events

This Agreement may be terminated on or prior to Completion:

- (i) by mutual consent of the Seller and the Purchaser; or
- (ii) by either the Purchaser and/or the Seller in accordance with and subject to Clause 5.5.

(b) Effect of termination

- (i) The termination of this Agreement pursuant to Clause 9.9(a) shall not prevent any Party from relying on other rights and remedies granted by this Agreement.
- (ii) If this Agreement is terminated pursuant to this Clause 9.9, all further obligations of the Parties under this Agreement shall terminate, except that the

rights or obligations set out in Clauses 1, 9.2, 9.4, 9.5, and 9.10 shall survive in accordance with their terms.

9.10 Governing law and jurisdiction

- (a) This Agreement is governed by the laws of the Grand Duchy of Luxembourg.
- (b) All disputes arising out of or in connection with this Agreement, including but not limited to its existence, validity, interpretation, performance, breach or termination, shall be brought before the competent courts of the city of Luxembourg.

[remainder of this page intentionally left blank; signature page follows]

Signed in Luxembourg, Grand Duchy of Luxembourg;

On December 19, 2023.

In three (3) original copies;

The signature of three (3) original copies shall constitute absolute proof of the obligations of the Parties under this Agreement.

MITO ULTIMATE HOLDINGS

Represented by:

DocuSigned by:

C191486092534A3...

Shahram Haghighi

Title: A Manager

DocuSigned by:

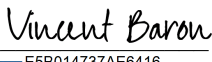
F41A0C9F8E5F435...

Benjamin Chouraki

B Manager

AGAPE PARTICIPACOES LTDA.

Represented by:

DocuSigned by:

E5B014737AE6416...

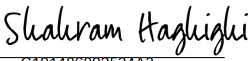
Vincent Robert Emile Baron

Authorized signatory

IN THE PRESENCE OF:

ALFAMITO

Represented by:

DocuSigned by:

C191486092534A3...

Shahram Haghighi

Title: A Manager

DocuSigned by:

F41A0C9F8E5F435...

Benjamin Chouraki

B Manager

SCHEDULE 1
FORM OF RESIGNATION LETTERS

To the sole shareholder of
Alfamito
2A, rue Nicolas Bové
L-1253 Luxembourg

(the **Company**)

[**date**]

Subject: Resignation as class [A/B] manager (*gérant de classe [A/B]*) of the Company

Dear Sirs,

I hereby tender my resignation as class [A/B] manager (*gérant de classe [A/B]*) of the Company effective as at the Completion Date (as defined in the sale and purchase agreement dated [*] entered into by and between the sole shareholder of the Company, as seller, Agape Participacoes Ltda., as purchaser and in the presence of the Company).

I kindly request that you proceed to file a notice regarding my resignation with the Luxembourg Register of Commerce and Companies as soon as possible after the Completion Date and to grant me, on the behalf of the Company and of its subsidiary, provisional discharge (*quitus*), from any liability for the performance of my mandate and functions as manager of the Company, in accordance with Luxembourg law, including in accordance with the Luxembourg law on commercial companies, dated August 10, 1915, as amended from time to time, except for cases of fraud, gross negligence, willful misconduct or criminal offence, which shall be reiterated in the form of a full discharge (*quitus*) to be granted at the next annual general meeting of the Company approving the annual accounts of the financial year ending December 31, 2023.

I also confirm that I have, and will have, no claim against the Company, its subsidiary or affiliate undertakings and/or their respective organs and employees, of whatsoever nature (whether statutory, contractual or otherwise) for loss of office or breach of contract or on any other ground whatsoever, in connection with the exercise or termination of my mandate and that the Company, and/or its subsidiary, does not owe me any compensation or any other sum in connection therewith for any reason whatsoever.

Yours sincerely,

[**name of the manager**]